

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
DERRICK SPENCER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
EDWARD LAM, SHIELD # 21414, and POLICE
OFFICERS JOHN AND JANE DOES NUMBER 1-10,

Defendant.
----- X

SUMMONS

Index No.:

Plaintiff designates Kings
County as the place of trial.

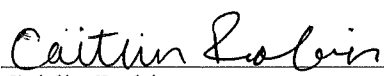
The Basis of Venue is:
Location of Occurrence

To the above named Defendant:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 21, 2021

Yours, etc.


Caitlin Robin
Caitlin Robin and Associates, PLLC
Attorney for Plaintiff
DERRICK SPENCER
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK : 100 Church Street, New York, New York 10007
NYPD POLICE OFFICER EDWARD LAM, SHIELD # 21414: 24 PCT
151 West 100th Street, Manhattan, NY 10025

SUPREME COURT OF THE STATE OF NEW YORK
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, DERRICK SPENCER, by his attorneys, Caitlin Robin & Associates, PLLC, as
and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On May 30, 2020, at approximately 7:00 p.m., plaintiff DERRICK SPENCER was subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present in the vicinity of Fort Green Park, County of Kings, New York. Additionally, the defendant police officers subjected plaintiff to excessive force when they, amongst other things, pepper sprayed the plaintiff, pushed him to the ground, and handcuffed his wrists tightly. Plaintiff was then unlawfully imprisoned at the Precinct Police Station and One Police Plaza for over approximately 14 hours until Plaintiff was released with a Desk Appearance Ticket. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the District Attorney's Office until the criminal charges against Plaintiff were dismissed and sealed. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, assaulted, battered, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

VENUE

2. Venue is proper before this Court because the police misconduct and civil rights violations giving rise to this action occurred in Kings County.

PARTIES

3. Plaintiff DERRICK SPENCER is a resident of the County of Kings, State of New York.

4. POLICE OFFICER EDWARD LAM, SHIELD # 21414, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. On the date of the subject incident, POLICE OFFICER EDWARD LAM, SHIELD # 21414, was assigned to Command 024.

6. POLICE OFFICER EDWARD LAM, SHIELD # 21414, is being sued in his individual and official capacities.

7. POLICE OFFICER JOHN AND JANE DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. On the date of the subject incident, POLICE OFFICER JOHN AND JANE DOE 1-10, were assigned to the NYPD.

9. POLICE OFFICER JOHN AND JANE DOE 1-10, is being sued in his individual and official capacities.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on November 24, 2020.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On May 30, 2020, at approximately 7:00 p.m., plaintiff was lawfully present in the vicinity of Fort Green Park when the defendant police officers unlawfully approached plaintiff without reasonable suspicion, probable cause, or legal justification.

17. On May 30, 2020, Plaintiff was lawfully attending a peaceful protest at the Barclays Center in Brooklyn, New York.

18. Plaintiff was standing in an area near Barclays Center where there were no police barricades or police vehicles parked.

19. While at Barclays Center, the Defendant Police Officers began to pepper spray the entire crowd, including the Plaintiff.

20. Plaintiff and other protesters then marched from Barclays Center to Fort Greene Park.

21. Police Officers at Fort Green Park instructed protestors to go home.

22. Plaintiff then began to walk towards the exit of Fort Greene Park in order to go home.

23. Defendants then pushed the Plaintiff to the ground, without any provocation or legal justification, and handcuffed his hands behind his back.

24. Plaintiff did not resist or physically retaliated against the police officers while being pushed to ground or handcuffed.

25. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

26. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

27. Plaintiff did not resist arrest.

28. Plaintiff complained to the Defendant Police Officers that the handcuffs were too tight, but Defendants did not loosen the handcuffs.

29. Defendants then escorted the Plaintiff to a nearby police precinct where he was forced to stand in the lobby until finally being sent to One Police Plaza where plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

30. Plaintiff was confined to police custody for approximately 14 hours before being released with a Desk Appearance Ticket with a return date of September 22, 2020, charging him with Unlawful Assembly (PL § 240.10).

31. Plaintiff was later notified by counsel that all criminal charges were dropped against him prior to the return date of September 22, 2020.

32. The Kings County District Attorney's office declined to prosecute the Plaintiff's case because they determined that no crime occurred.

33. Plaintiff sustained multiple personal injuries as a result of Defendants pepper spraying Plaintiff, forcibly pushing Plaintiff to the ground, and handcuffing Plaintiff too tightly.

34. Plaintiff did not seek medical treatment for his physical injuries because of the Covid-19 pandemic.

35. Some of the defendant police officers observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting, imprisoning, and denying Plaintiff the right to due process and a fair trial.

36. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation Of Plaintiff's First Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

38. The illegal block of demonstration employed by defendants herein terminated Plaintiff's right to peacefully assemble and protest through means intentionally applied.

39. The conduct of defendants in stopping Plaintiff from peacefully protesting was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

40. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and of the United States Constitution.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of new York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

43. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

SECOND CAUSE OF ACTION

Violation Of Plaintiff's Fourth Amendment And Fourteenth Amendment Rights

44. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

47. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

THIRD CAUSE OF ACTION

False Arrest And False Imprisonment

48. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

51. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

53. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

54. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FOURTH CAUSE OF ACTION
Unlawful Stop, Question, And Frisk

55. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers in stopping, frisking, and searching, plaintiff without any reasonable suspicion of criminality or other constitutionally required grounds.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

59. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

61. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

62. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FIFTH CAUSE OF ACTION

Unlawful Search

63. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search plaintiff.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

67. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Denial Of Plaintiff's Firth and Fourteenth Amendment Rights

Denial of Right To Fair Trial/ Due Process

69. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

70. Defendants, individually and collectively, wrongfully charged the Plaintiff with Unlawful Assembly (PL § 240.10).

71. Defendants were at all times acting under the color of law and the color of their authority as New York City Police Officers when they manufactured and/or withheld false evidence, filled out false and misleading police reports, and signed false and misleading criminal

court affidavits, and forwarded this false evidence to prosecutors in the Brooklyn County District Attorney's Office.

72. As a result of the foregoing, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

73. As a direct and proximate result of such acts, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment, humiliation, and deprivation of his rights under the laws of the State of New York and the United States Constitution.

74. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Negligence

77. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

78. Defendants owed a duty of care to Plaintiff.

79. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

80. All of the foregoing occurred without any fault or provocation by Plaintiff.

81. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

EIGHTH CAUSE OF ACTION
Violation Of Plaintiff's Fourth And Fourteenth Amendment Rights

84. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

85. The use of excessive force by defendants by pepper spraying Plaintiff, forcibly pushing Plaintiff to the ground, and handcuffing Plaintiff too tightly, causing him to suffer serious physical injuries was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

86. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

88. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

89. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

NINTH CAUSE OF ACTION
Assault

90. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

91. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

92. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

93. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

95. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

96. Plaintiff is informed and believes and thereon alleges that the defendants' actions were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the Defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

TENTH CAUSE OF ACTION

Battery

97. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

102. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner shoved Plaintiff, threw him to the ground and excessively tight handcuffed him, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

103. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

105. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

ELEVNETH CAUSE OF ACTION

Malicious Prosecution

98. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

99. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

100. Defendants commenced and continued a criminal proceeding against Plaintiff.

101. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

102. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

103. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

104. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

105. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TWELFTH CAUSE OF ACTION
Negligent Infliction Of Emotional Distress

107. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

108. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, DERRICK SPENCER.

109. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

110. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

111. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

112. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

113. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

THIRTEENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training, and Supervision

114. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

115. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

116. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTEENTH CAUSE OF ACTION
Failure To Intervene

117. The plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if more fully set forth at length herein.

118. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

119. Defendants failed to intervene to prevent the unlawful conduct described herein.

120. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

121. Defendants were at all times acting under the color of law and within the scope of their employment by the City of New York and New York City Police Department, which are therefore responsible for their conduct.

122. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

123. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

JURY DEMAND

124. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff DERRICK SPENCER demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 21, 2021

By: Caitlin Robin

Caitlin Robin
CAITLIN ROBIN & ASSOCIATES PLLC.
Attorney for Plaintiff
DERRICK SPENCER
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

ATTORNEY'S VERIFICATION

Caitlin Robin, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 21, 2021


Caitlin Robin

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiff,

-against-

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Defendant.

SUMMONS AND VERIFIED COMPLAINT

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